



Service Partnership Agreement – Freelancers / Independent Consultants

This Partnership Agreement ("Agreement") is entered into as of _____ **2024**, between M/s. **Swifterz Creative Services LLP** ("Swifterz"), Operating with its principal place of business located at #24, Corner Woods, 2nd Floor, Dr. Rajagopal Road, Sanjay Nagar Main Road, Bangalore 560094 , and Mr / Ms. _____ **residing at** _____ providing _____ services. (Collectively referred to as "Service Partner").

1. Purpose of Agreement

The purpose of this Agreement is to establish a partnership between Swifterz and _____ for the provision of Building Information Modeling (BIM) services to clients of Swifterz.

2. Scope of Partnership

2.1 Swifterz shall engage Partners to provide BIM services for projects as required by clients.

2.2 Partners agree to provide BIM services in accordance with the specifications and requirements outlined by Swifterz and agreed upon with the client.

3. Responsibilities

3.1 Swifterz Responsibilities:

- a. Coordinate projects and communications between clients and Partners through Swifterz Platform.
- b. Provide necessary project information and specifications to Partners.
- c. Swifterz will provide access to its Project Management Application as the tool for communication and project management.
- d. Ensure timely payment on the receipt of payments received from the client to Partners for services rendered.



3.2 Partner Responsibilities:

- a. Provide high-quality and timely BIM services in accordance with industry standards.
- b. Assign skilled personnel to work on projects.
- c. Cooperate with Swifterz in project coordination and communication with clients.
- d. Partner should represent on behalf of Swifterz at any point of communication, discussion, presentation with the client.
- e. Partners are restricted from directly approaching clients for business activities helps maintain a cohesive and consistent client experience.
- f. Partner will use the Project Management Application provided by Swifterz for project management and communication.
- g. In addition to the responsibilities outlined above, the following point shall also apply:

In the event of termination of this partnership by either party, or in the case of a voluntary withdrawal by the partner, the partner agrees not to approach any clients that were engaged or introduced through this partnership for any business purposes for a period of one year from the date of termination or withdrawal. This clause is intended to protect the business interests and client relationships established during the course of the partnership.

4. Project Assignment

Swifterz shall assign projects to Partners based on their expertise and availability. Partners agree to accept and complete assigned projects within agreed timelines, quality standards, payment structure.

5. Revenue Sharing

Pricing will be mutually agreed based on the scope of the project and NDA will be signed for every project. Platform Service Charges will be applicable.

6. Confidentiality

6.1 Both parties agree to maintain the confidentiality of any proprietary or confidential information shared during the course of the partnership.

6.2 NDA will be signed to ensure confidentiality.



7. Marketing and Branding

7.1 Both Swifterz and Partners agree to the mutual promotion of their partnership and the services provided therein.

7.2 Each party shall have the right to update its company website, marketing collaterals, and branding materials to include information about the partnership, including but not limited to, the services provided by the other party.

7.3 Any updates made to company websites, marketing collaterals, and branding materials shall accurately represent the services and capabilities of the other party.

7.4 Both parties shall provide each other with access to relevant logos, branding assets, and other materials necessary for the promotion of the partnership.

7.5 Neither party shall make any false or misleading statements about the other party or its services in any marketing materials.

7.6 Both parties shall collaborate on joint marketing efforts, including but not limited to, press releases, case studies, and promotional events, to enhance the visibility and credibility of the partnership.

7.7 This provision regarding marketing and branding shall remain in effect for the duration of the partnership agreement unless terminated or amended by mutual written agreement of both parties.

8. Shared Office Space

8.1 Both Swifterz and Partners agree to allow each other access to their respective office spaces as needed for the purpose of conducting partnership-related activities, meetings, and coordination.

8.2 The use of office space by either party shall be subject to availability and shall be coordinated in advance to ensure minimal disruption to regular operations.

8.4 Neither party shall incur any additional costs or expenses for the use of shared office space unless otherwise agreed upon in writing.

8.5 This provision regarding shared office space shall remain in effect for the duration of the partnership agreement unless terminated or amended by mutual written agreement of both parties.



9. Term and Termination

9.1 This Agreement shall commence on the effective date and shall continue until terminated by either party upon written notice.

9.2 Either party may terminate this Agreement immediately upon written notice in the event of a material breach by the other party.

10. Disputes

In the event of any disputes arising from or relating to this Agreement, the parties shall first attempt to resolve the dispute amicably through informal negotiations within 30 days. If unresolved, the dispute shall be submitted to mediation by a mutually agreed-upon mediator within 45 days. Should mediation fail, the dispute shall be resolved through binding arbitration in accordance with the rules of [Arbitration Organization], conducted in [Location], with the arbitrator's decision being final and binding. The costs of mediation and arbitration shall be shared equally unless otherwise determined. This Agreement shall be governed by the laws of [Applicable Jurisdiction]. During the dispute resolution process, both parties shall continue to fulfill their obligations under this Agreement unless performance is rendered impossible by the nature of the dispute.

11. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of TamilNadu.

12. Entire Agreement

This Agreement constitutes the entire understanding between the parties concerning the subject matter herein and supersedes all prior agreements, negotiations, and understandings, whether written or oral.

13. Amendments

No amendment or modification of this Agreement shall be valid unless made in writing and signed by both parties.



IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first above written.

Authorized Signatory Name: **Mr. Shankker Kumar V - CEO**



[Seal & Signature] For, **Swifterz Creative Services LLP**

Date: ____ / ____ / **2024**

Authorized Signatory Name:

[Seal & Signature] For,

Date: ____ / ____ / **2024**

Witness 1:

Name:

Address:

Signature:

Witness 2:

Name:

Address:

Signature: